

TENTATIVE RULINGS

FOR: August 21, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

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If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

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Dept. B Zoom

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Dept. 6 Zoom

Join by Video (Preferred)

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Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Charles Richard Kepner

25PR000144

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: A status report is on file. Although there is no evidence that the status report was properly noticed and served on all interested persons (see Prob. Code, 12201), the Court determines that continuation of administration is in the best interests of the estate. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to November 20, 2026, at 8:30 a.m. in Dept. A. If final distribution petition is not already on file, Executors shall file and serve, at least 15 days prior to the next hearing, an updated status report pursuant to Prob. Code section 12200. The Clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

City of American Canyon v. Timothy J. Shea et al

20CV001254

MOTION FOR DETERMINATION OF LEGAL ISSUES REGARDING SEVERANCE DAMAGES AND GOOD WILL DAMAGES – FURTHER HEARING AS TO ISSUE 2 ONLY

TENTATIVE RULING: The Motion, as to Issue No. 2 (defined below), is DENIED. The parties are directed to appear to discuss Plaintiff’s request to bifurcate the matter.

A. PROCEDURAL MATTERS

Plaintiff City of American Canyon (“Plaintiff” or “City”) moves, pursuant to Code of Civil Procedure section 1260.040, subdivision (a),¹ for a determination of legal and evidentiary issues affecting determination of fair market value.

The City’s Motion sought six rulings (“Issues”). The matter originally came on for hearing on July 16, 2026. In an Order After Hearing (“OAH”), dated July 17, 2026, the Court denied, as moot, the Motion as to five Issues, Nos. 1, 3, 4, 5, and 6. With respect to the remaining Issue No. 2, the Court continued the hearing and granted (1) Defendants leave to file a Supplemental Opposition of no more than seven pages with supporting evidence on or before August 3, 2026 and (2) Plaintiff to file a Supplemental Reply of no more than seven pages on or before August 14, 2026.

The parties timely filed their supplemental briefs and evidence.

The remaining Issue No. 2 is a ruling as follows: “The construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.” (Notice of Motion, 2:12-16.)

B. LEGAL STANDARD

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

“If there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. The motion shall be made not later than 60 days before commencement of trial on the issue of compensation. The motion shall be heard by the judge assigned for trial of the case.” (§ 1260.040, subdivision (a).)

Under the Eminent Domain Code, a property owner is entitled to the value of the part taken and any damage to the remainder of the property (i.e. the portion of the parcel not taken). (§ 1263.410.) Damage to the remainder, often referred to as “severance damages,” can come from (1) the severance of the remainder from the part taken, or (2) the construction and use of the project for which the property is taken in the manner proposed by the agency whether or not the damage is caused by a portion of the project located on the part taken. (§ 1263.420.) “[A] showing of substantial impairment is only required when the taking interferes with access to the property from a public street.” (*City of Livermore v. Baca* (2012) 205 Cal.App.4th 1460, 1467.)

An urban landowner enjoys property rights in the street upon which his land abuts. (*Breidert v. Southern Pac. Co.* (1964) 61 Cal.2d 659, 663.) “Chief among these is an easement of access in such street. This easement consists of the right to get into the street upon which the landowner’s property abuts and from there, in a reasonable manner, to the general system of public streets.” (*Ibid.*)

C. DISCUSSION

1. Background

Defendants Tim & Rhonda, LLC and FRG Waste Resources, Inc. J. Shea (collectively “Shea” or “Defendants”) oppose the motion on the ground that Issue 2 is not subject to the substantial impairment test because Shea has a vested property right in the easement of egress that is being taken by the Project, and therefore, compensation is required.

The Court previously found, based on the evidence presented by Plaintiff (which was previously undisputed), that Plaintiff had established that the construction of a center median as part of the Project, which will preclude trucks with a wheel base of 40 feet or greater (“WB-40”) from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law because, prior to the Project, trucks with a WB-40 cannot *legally* egress via the Green Island Road driveway under Vehicle Code section 21460. (See OAH, p. 4.) (Declaration of Ramada (“Ramada Decl.”), ¶ 6, Ex. B.) The reasoning was that a landowner’s “right to get ..., *in a reasonable manner*, to the general system of public streets” does not include the right to egress his or her property by a maneuver that the law prohibits because that could not be considered reasonable. (See *Breidert, supra*, 61 Cal.2d at 663.)

Through its Opposition, Shea did not submit evidence to dispute that, prior to the Project, a WB-40 truck cannot *legally* egress via the Green Island Road driveway (i.e., cannot turn right from the driveway without crossing the double yellow centerline). At oral argument, Shea argued

that it intended to submit evidence that WB-40 trucks could turn right onto Green Island Road without crossing the double yellow line.

2. Shea's Creation of a Factual Dispute as to the Lawfulness of a WB-40 Truck's Right Turn

Shea's Supplemental Opposition relies on a Declaration of Peter K. Pirzadeh ("Pirzadeh Decl.") to show that, prior to the Project, WB-40 trucks can safely execute a right turn from the Property's Green Island Road driveway onto eastbound Green Island Road without crossing the double yellow centerline. (Suppl. Opp., 1:25-2:2; Pirzadeh Decl., ¶¶ 7-8, Exh. B.) Shea clarifies:

Shea is not asking the Court to choose between the experts on this motion. The point is narrower. Because competent evidence now disputes the very premise upon which the City's legal argument depends, the City cannot establish the undisputed factual foundation necessary for the categorical ruling it seeks. If the maneuver can be performed without crossing the centerline, Cal. Veh. Code § 21460 does not apply, and the basis for the City's argument disappears. [¶] At a minimum, the competing engineering analyses demonstrate that the City's asserted factual predicate is not established as an undisputed matter. For that reason alone, the City is not entitled to the categorical ruling it seeks under Cal. Code Civ. Proc. § 1260.040.

(Suppl. Opp., 4:1-10.)

The City's Supplemental Reply and Supplemental Declaration of Mr. Ranada ("Ranada Suppl. Decl.") point out that Mr. Pirzadeh's turn study, attached as Exhibit B to his declaration, shows that, in order for a WB-40 truck to complete a right turn out of the Green Island Road driveway without crossing the double yellow centerline of Green Island Road, the truck must (1) depart from the established driveway, (2) cross through an unpaved City-owned right-of-way, and (3) roll over the City-owned water meter that sits to the east of the Green Island Road driveway, resulting in damage to City property and damage to landscaping within the City right-of-way. (Ranada Suppl. Decl., ¶ 8; see also *id.*, ¶¶ 3-7, Exhs. A-C.)

The City argues that such a maneuver is unlawful under Penal Code, section 594, subdivision (a) and the City's Municipal Code sections 10.20.040 and 12.04.170. Penal Code, section 594, subdivision (a) defines vandalism as the malicious commitment of damage or destruction to any real or personal property not his or her own, including property belonging to a public entity. The Court does not believe the act of a WB-40 truck driving partially over a sidewalk and parking strip when exiting a driveway particularly susceptible to the definition of vandalism.

Municipal Code section 10.20.040 provides that "[t]he driver of a vehicle shall not drive within any sidewalk area or any parkway except at a permanent or temporary driveway." (Ranada Suppl. Decl., ¶ 9, Exh. D.) "Sidewalk" is defined as "that portion of a highway, other

than the roadway, set apart by curbs, barriers, markings or other delineation for pedestrian travel.” (Veh. Code, § 555.) Municipal Code section 12.04.170 makes it unlawful for any person to damage any tree, plant, or ground cover within any City open space. (Ranada Suppl. Decl., ¶ 9, Exh. E.)

Based on the foregoing, Shea’s showing that the maneuver can be performed without violating Vehicle Code section 21460 (crossing the centerline), but by violating Municipal Code sections 10.20.040 and 12.04.170 (driving outside a permanent or temporary driveway and damaging City landscape) would not create a dispute that a WB-40 truck cannot *legally* egress via the Green Island Road driveway as to Issue No. 2. If that were the case, the Court would determine that the construction of a center median as part of the Project, which will preclude WB-40 trucks from egressing via the Green Island Road driveway, is not a compensable item of damage that may be considered when valuing severance damages in this action.

That said, the Court notes that Pirzadeh’s Declaration states that a WB-40 truck can execute the right turn “while remaining entirely within the eastbound travel lane and the driveway apron, without any portion of the vehicle crossing the double yellow centerline.” (Pirzadeh Decl., ¶ 7.) As best the Court can tell, Mr. Pirzadeh’s illustration of the diagram attached as Exhibit B appears to show two different routes a WB-40 truck can take without crossing the double yellow centerline; one path to the far right of the driveway in green, and the other is more centered in yellow. (*Id.*, Exh. B.) The Pirzadeh Decl. does not identify whether its statement in Paragraph 7 is in reference to one or both paths. The City’s argument only seems to apply to the green path, as the yellow path does not appear to cross the City-owned property identified by Defendant and the Ranada Suppl. Decl. Because it is unclear and because one of the paths depicted in Mr. Pirzadeh’s illustration appears consistent with Mr. Pirzadeh’s declaration that the maneuver can be accomplished while remaining entirely within the driveway apron, the Court must indulge the inference in favor of the non-moving party, Shea. (See City’s Suppl. Reply, 3:16-19 [recognizing Court’s obligation to indulge every legitimate inference in the non-moving party’s favor and resolve conflicts in that party’s favor].)

Based on the foregoing, the Court finds that Shea has established that a WB-40 truck can legally accomplish the right turn egress via the Green Island Road driveway, or at the very least has created a factual dispute as to the City’s showing.

3. The City’s Alternative Argument of no Substantial Impairment

The City next argues in its Supplemental Reply that, even assuming *arguendo* a WB-40 truck could lawfully execute the right turn, the elimination of that single movement for a single class of vehicle, where another driveway exists, does not constitute a substantial impairment of access as a matter of law. (See Suppl. Reply, 4:8-6:27, citing *San Diego Metro Transit Dev. Bd. v. Price Co.* (1995) 37 Cal.App.4th 1541 (*San Diego Metro*) and *Holman v. State* (1950) 97 Cal.App.2d 237, 238-39.)

Shea disputes that contention, arguing that the relevant inquiry is not whether *some* access remains, but whether the Project eliminates a component of access reasonably related to

the Property's existing use. (Suppl. Opp., 5:3-10, citing *Rose v. State of California* (1942) 19 Cal.2d 713, 727-28.)

The Court has reviewed the abovementioned authority cited by the parties and finds that there is not sufficient evidence before the Court as to the consequences of WB-40 trucks being precluded egress via the Green Island Road driveway. For example, there is no evidence regarding the primary purpose of the Property, whether WB-40 trucks routinely ingress and egress from the Property, whether the highest and best use of the Property before and after the impairment remains the same, whether the alternate egress access point increases the distance of travel or difficulty for WB-40 trucks to egress therefrom, whether the Property could be used for the same purposes before and after the Project, and whether the Project would prevent or deter access to the Property for WB-40 trucks.

Rose seems to reject the suggestion that the taking of a previous right of access from one's property to the street or highway on which the property abuts, where another access point exists, is merely an inconvenience and not a substantial impairment, where there is evidence to support a finding of substantial and unreasonable interference with the landowner's easement of access or right of ingress and egress. (See *Rose*, *supra*, 19 Cal.2d at 728.)

San Diego Metro holds that "the trial court is required to compare the access available to the particular property before and after the impairment and then decide if the impairment is substantial. This determination requires the consideration of extensive evidence of the effect of the impairment of access to the property which existed before the impairment." (*Id.*, *supra*, 37 Cal.App.4th at 1547-48.) For example, the Court in *San Diego Metro* found the following evidence "substantial and sufficient to support the determination of the trial court" that there was no substantial impairment: "evidence that the access impairment only increased the distance of travel from the property to [one direction of] lanes, that the highest and best use of the property before and after the impairment remained the same, and that the property could be used for the same purposes before and after the impairment. There was no evidence that the impairment would prevent or deter access to any particular type of vehicle, like a delivery truck, or decrease the number of vehicles to which the property is available." (*Id.*, at 1549.)

Thus, contrary to the City's contention, the mere fact that alternative access to the property exists, does not appear to be the end of the inquiry for a proper determination of whether the substantial impairment test is met. Moreover, the evidence of alternative access to the property is simply that "[t]he Property is accessible via two driveways" (see Ranada Decl., ¶ 3), which notably does not specify that the Property is accessible by WB-40 trucks via two driveways.

Holman is distinguishable as the basis for the property owner's request for compensation was the diversion of traffic to the property; the court held that projects that result only in more circuitous and less convenient access to, and that divert the main stream of traffic from, the owner's business frontage, are not compensable. However, *Holman* expressly distinguished prior decisions, including *Rose*, as follows: "In all of the foregoing cases in which it was held that compensation must be paid there was ... a physical impairment of access from the property to the street, whether caused by change of grade, ... or by physical impairment of the property to

the street by the means of the construction of a physical barrier...” (*Id.*, *supra*, 97 Cal.App.2d at 241. Emphasis added.) As the California Supreme Court thereafter noted, “[t]he distinctions between these various situations and their impact on the actual value of the property is simply one of degree” and no general rule can be laid down to cover all situations. (See *People v. Sayig* (1951) 101 Cal.App.2d 890, 905; *Bacich v. Board of Control of California* (1943) 23 Cal.2d at 343, 355.)

Based on the foregoing, the Court does not conclude that Shea will not suffer a substantial impairment of access as a matter of law.

4. The City’s Alternative Request

The City requests that, if the Court declines to rule on Issue No. 2 on the present record, the Court should bifurcate trial and try the substantial impairment issue to the Court before any jury trial on compensation. (Suppl. Reply, 7:1-20.) This is the general sequence of events that the Court understands applies, as the issue of substantial impairment is a matter of law for the Court. However, the City did not raise this alternative request with its original moving papers. Nor has Shea had an opportunity to respond to the request made for the first time through the City’s Supplemental Reply. As such, the Parties are directed to appear to discuss the matter with the Court.

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John Doe A.R. et al v. Brad Rowell et al

25CV001606

[1] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiff John Doe A.R.)

TENTATIVE RULING: On July 27, 2026 Counsel filed a Dismissal of Plaintiff John Doe A.R. the instant hearing is, therefore, MOOT.

[2] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiffs Jane Doe J.M. and John Doe M.W.)

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Mayra Aguilar v. General Motors LLC

25CV001964

PLAINTIFF’S MOTION FOR DETERMINATION OF ATTORNEY FEES AND COSTS
UNDER SETTLEMENT AGREEMENT

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026 at 8:30 a.m. in Dept. A. The September 2, 2026 OSC re Dismissal is continued to October 28, 2026 at 8:30 am in Dept. A.

Moving party failed to include in the notice of the motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of service of the Amended Notice pursuant to Rules of Court, rule 3.1300, subd. (c).

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Water Audit California v. County of Napa et al

25CV002032

[1] [COUNTY DEFENDANTS’] MOTION TO STRIKE PORTIONS OF THIRD
AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE
AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The motion is GRANTED IN PART. The Court orders the following STRICKEN from the Third Amended Verified Petition: the individually named defendants in the caption; Paragraphs 16, and 339 through 344 in their entirety; and Paragraphs 3-5 of the Prayer for Relief. The Motion is DENIED in all other respects.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants and Respondents Napa County, Napa County Planning Commission, Napa County Board of Supervisors, Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, Belia Ramos (Napa County Board of Supervisors Members), Kara Brunzell, Walter Brooks, Pete Richmond and Megan Dameron (Napa Planning Commission Members) (collectively, County Defendants) move, pursuant to Code of Civil Procedure sections 435 and 436, and California Rules of Court, Rule 3.1322, to strike certain portions of the Third Amended Verified Petition

for Administrative Writ of Mandate and Writ of Mandate and Complaint for Injunctive Relief(TAP), filed by Petitioner Water Audit California (WAC or Petitioner).

Petitioner filed the operative Third Amended Verified Petition (TAP) following the Court’s order sustaining the demurrer of co-defendant Bonny’s Vineyard to the Second Amended Verified Petition. (See Minute Order of May 27, 2026.) Therein, the Court granted Petitioner limited leave to amend. “Petitioner is granted 10 Court days’ leave to file a further amended Petition; limited, however, to alleging facts: (1) entitling Petitioner to a writ of mandamus for acts or omissions of Respondent other than noncompliance with the California Environmental Quality Act (CEQA), if appropriate; (2) sufficient to state a claim for violation of the Public Trust Doctrine; and/or (3) sufficient to state a claim for violation of Article I, Section 7 of the California Constitution.” (*Ibid.*)

Petitioner filed the TAP on June 10, 2026.

B. LEGAL BACKGROUND

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Id.* at §437, subd. (a).) In ruling on a motion to strike, the Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.)

“The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385.) However, a motion to strike cannot be made to serve the purpose of a special demurrer. (*Allerton v. King* (1929) 96 Cal.App.230, 234.)

C. LEGAL ANALYSIS

1. Petitioner Was Not Granted Leave to Add Defendants

County Defendants first seek to strike those portions of the TAP that purport to assert causes of action against Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, and Belia Ramos (Napa County Board of Supervisors members), and Kara Brunzell, Walter Brooks, Pete Richmond, and Megan Dameron (Napa County Planning Commission members).

No claims were asserted against any of these defendants through the SAP.

“Following an order sustaining a demurrer . . . with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court’s order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless

the new cause of action is within the scope of the order granting leave to amend.” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 (*Zakk*).)

Petitioner was not granted leave to assert claims against these defendants. As such, the Motion to Strike is GRANTED as to the caption² and Paragraph 16, in its entirety.

The Court finds, however, that the allegations of acts, statements, and/or omissions by these individuals are, as a consequence of the individuals’ respective positions with the County, potentially relevant to Petitioner’s claims against the County. The Motion is, therefore, DENIED as to Paragraphs 188-191.

2. Petitioner was Not Granted Leave to Add a Cause of Action for Declaratory Relief

The TAP includes a cause of action for declaratory relief. (See *id.*, ¶¶ 339-344, at 39:23, *et seq.*) No such cause of action was asserted through the SAP.³ Petitioner was not granted leave to add a new cause of action to the TAP. (See *Zakk*, *supra*, at 33 Cal.App.5th 431, 456 [“The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend”].)

The Motion to Strike is, therefore GRANTED as to the fifth cause of action for declaratory relief at Paragraphs 339 through 344 of the Petition, as well as Paragraphs 3-5 of the Prayer for Relief section of the TAP.

3. The Motion is Denied in All other Respects

County Defendants ask the Court to strike references to Article X, Section 2 of the California Constitution. The Court acknowledges that the SAC did not contain references to Article X, Section 2 of the California Constitution.

As County Defendants concede, however, these references simply articulate a new legal theory. (See, *e.g.*, Support Memorandum at 5:7.) A party is not required to specifically articulate the legal theory by which they seek relief in a pleading. (See Code Civ. Proc., § 425.10 [“A Complaint . . . shall contain . . . [a] statement of the facts constituting the cause of action, in ordinary and concise language . . . [and] . . . [a] demand for judgment for the relief to which the pleader claims to be entitled”].) These References in the TAP appear to be included in relation to Petitioner’s causes of action for a writ of mandate. (See, *e.g.*, *id.* at ¶ 83.)

The Court further acknowledges that a party is not required, or encouraged to include legal citations in a complaint. However, the Court does not find that the limited citations to this section of the Constitution unnecessarily confuse the allegations or seek to add any new cause of action to the litigation.

² The Court notes that the official Caption of a case does not change regardless of whether parties are joined or dismissed from the action.

³ While the SAC made vague, abstract references to “declaratory relief” it did not, so far as the Court can find, contain allegations specifically defining the declaration sought or pleading facts establishing the elements thereof.

County Defendants ask the Court to strike the allegations of Paragraphs 22-28. These allegations were included in the SAP. (See *id.* at ¶¶ 16-22.) County Defendants fail to persuade the Court that they are improper or non-conforming or should, for any other reason, be stricken from the TAP.

[2] [BONNY'S VINEYARD'S] MOTION TO STRIKE WATER AUDIT'S THIRD AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The motion is GRANTED IN PART. The Court orders the following STRICKEN from the Third Amended Verified Petition: Paragraphs 339 through 344, in their entirety, and Paragraphs 3 through 5 of the Prayer for Relief. The Motion is DENIED in all other respects.

Real Party in Interest Bonny's Vineyard (Bonny's) moves, pursuant to Code of Civil Procedure 435 subdivision (b)(1) and 436 (a), to strike certain portions of the Third Amended Verified Petition for Administrative Writ of Mandate and Writ of Mandate and Complaint for Injunctive Relief (TAP), filed by Petitioner WATER AUDIT CALIFORNIA (Petitioner).

Bonny's first moves to strike the first, second, third, and fourth causes of action on grounds that they are barred by the statute of limitations.

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) A motion to strike cannot be made to serve the purpose of a special demurrer. (*Allerton v. King* (1929) 96 Cal.App.230, 234.)

Bonny's raises the same issue through its concurrent demurrer to the TAP.

Based on the foregoing, Bonny's Motion to Strike is DENIED as to the first through fourth causes of action.

Bonny's moves to strike the fifth cause of action for declaratory relief. (See TAP, ¶¶ 339-344, at 39:23, *et seq.*) No such cause of action was asserted through the SAP.⁴ Petitioner was not granted leave to add a new cause of action to the TAP. (See *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 (*Zakk*) ["The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend".])

The Motion to Strike is, therefore GRANTED as to the fifth cause of action for declaratory relief at Paragraphs 339 through 344 of the Petition, as well as Paragraphs 3-5 of the Prayer for Relief section of the TAP.

⁴ While the SAC made vague, abstract references to "declaratory relief" it did not, so far as the Court can find, contain allegations specifically defining the declaration sought or pleading facts establishing the elements thereof.

- [3] [COUNTY DEFENDANTS'] DEMURRER TO THIRD AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF
- [4] [BONNY'S VINEYARD'S] DEMURRER TO PETITIONER'S THIRD AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The demurrers are each SUSTAINED WITHOUT LEAVE TO AMEND.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants and Respondents Napa County, Napa County Planning Commission, Napa County Board of Supervisors, Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, Belia Ramos (Napa County Board of Supervisors Members), Kara Brunzell, Walter Brooks, Pete Richmond and Megan Dameron (Napa Planning Commission Members) (collectively, County Defendants) demur, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), and Government Code section 65009, subdivision (c)(1)(E), to the Third Amended Verified Petition for Administrative Writ of Mandate and Writ of Mandate and Complaint for Injunctive Relief (TAP), filed by Petitioner Water Audit California (WAC or Petitioner). County Defendants contend that the TAP fails to allege facts sufficient to sustain any of the five asserted causes of action, and that each is time barred and/or fatally uncertain.

Real Party in Interest Bonny's Vineyard (Bonny's) joins in the County Defendants' Demurrer. Bonny's also independently demurs to the TAP on grounds that "(1) The Petition is barred by the applicable statute of limitations and is therefore untimely as a matter of law; (2) Petitioner failed to join indispensable parties and failed to exhaust administrative remedies, requiring dismissal pursuant to Code of Civil Procedure section 389; (3) the Petition is uncertain, ambiguous, and unintelligible within the meaning of Code of Civil Procedure section 430.10(f); and (4) the Petition fails to state facts sufficient to constitute a cause of action against Defendant under Code of Civil Procedure section 430.10(e), including because of the allegations are contradicted by matters subject to judicial notice." (Notice of Demurrer at 2:2-8.)

Because the demurrers, and Petitioner's respective Opposition briefs thereto, raise largely overlapping issues and assert largely overlapping arguments, the Court addresses both, collectively, by this ruling.

Except as discussed below, the subject matters of the requests for judicial notice are not relevant to the Court's analysis of the instant demurrers and, for this reason, the Court declines to rule on those requests. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 ["Although a court may take judicial notice of a variety of matters, only relevant material may be noticed."].)

B. LEGAL ANALYSIS

1. The Claims Challenging the Bonny's Use Permit are Necessarily Time Barred

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]' [Citation.]" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

County Defendants and Bonny's argue that each cause of action seeking to "attack, review, set aside, void, or annul" the use permit issued to co-defendant Bonny's Vineyard is barred by the limitations period provided for in Government Code section 65009, subdivision (c)(1)(E). That statute provides that, with exceptions having no apparent relevance here, no action to attack, review, set aside, void, or annul any decision to determine the reasonableness, legality, or validity of any condition attached to a variance, conditional use permit, or any other permit may be maintained unless it is "commenced and service is made on the legislative body within 90 days after the legislative body's decision" (*Ibid.*)

Petitioner alleges that on June 24, 2025, the County Board of Supervisors denied Petitioner's appeal of the Planning Commission's approval of Bonny's Vineyard Use Permit No. P22-00002-UP (Bonny's Use Permit). (See TAP at ¶¶ 4, 144-146.) Pursuant to Government Code section 65009, subdivision (c)(1)(E), any action challenging that decision had to have been filed *and served* on or before September 22, 2025.

The Court takes judicial notice of its files in the action, and finds that the Proof of Service of Summons on Napa County, filed by Petitioner on October 17, 2025, evidences service on the County on October 6, 2025. Because Petitioner failed to serve Napa County within 90 days of the Board of Supervisor's decision on Bonny's Use Permit, it appears that its causes of action challenging the issuance of that use permit are time-barred.

Through the Opposition, Petitioner argues that “[w]here clerk processing delays the issuance of the summons a petitioner must serve, the doctrine of constructive filing and ordinary equitable principles preclude converting the clerk’s timeline into a forfeiture.” (*Id.* at 11:27-29.) “[Equitable principals] apply with full force where the clerk’s own delay in accepting the petition and issuing the summons made service legally impossible until the summons issued.” (*Id.* at 12:7-9.) Finally, Petitioner argues that “[t]o the extent the County contends that Water Audit could not in any event have served within the statutory window, that contention rests on speculation about what the clerk would have done with a timely-tendered petition, and speculation cannot support a demurrer.” (*Id.* at 13:4-6.) The Court disagrees that the County Defendants’ and Bonny’s’ “contention rests on speculation.”

On October 10, 2025, Petitioner applied, *ex parte* for a *nunc pro tunc* order deeming the Petition filed on September 22, 2025. In support of that application, Petitioner submitted “a true and correct copy of the filing receipt from September 22, 2025.” (Declaration of Linda Ghiringhelli at ¶ 3, Exh. 1 (Ghiringhelli Decl.)) That filing receipt states that the original Petition was uploaded into OneLegal for electronic filing with the Court, at 7:02 P.M. on September 22, 2025. (See *id.* at Exh. 1.) The Court takes judicial notice of the fact that its business hours have, from 2025 through the present, been Monday through Friday, excepting Court holidays, from 8:00 a.m. to 5:00 p.m. Thus, the Ghiringhelli Decl. demonstrates that Petitioner did not submit the original Petition *for filing* until after the close of business on September 22, 2025.

A Clerk may issue a summons only after the filing of a case and payment of fees. (See Code Civ. Proc., § 412.10 “[a]fter payment of all applicable fees, the plaintiff may have the clerk issue one or more summons for any defendant”]; see also *Maginn v. City of Glendale* (1999), 72 Cal.App.4th 1102, 1107.) Because Petitioner’s filing demonstrates that the original Petition was not submitted *for filing* until after the Court’s close of business on September 22, 2025, there is no possibility that the Clerk would have issued the summons on that day. For this reason, there is no possibility that Petitioner could have effectuated service of that summons on the County on that day.

Based on the foregoing, the Court finds that Petitioner’s claims based on allegations that the County’s issuance of Bonny’s Use Permit was improper and/or seeking to review that decision, and/or set aside, void, or annul that use permit, are necessarily time-barred. There appears to be no other basis in support of Petitioner’s First Cause of Action for Writ of Administrative Mandate and therefore the demurrer is sustained in its entirety as to that cause of action. To the extent there are claims *other than* those seeking to attack, review, set aside, void, or annul the Bonny’s Use Permit asserted in the Second through Fourth Causes of Action, they are discussed below.

Given the nature of the foregoing, the Court finds no possibility that Petitioner can amend the Petition to “plead around” this bar.

2. The TAP Fails to State Any Other Cause of Action

Through its Opposition to the County Defendant’s demurrer, Petitioner asserts that “[t]he TAC’s core prospective claims, to compel the County’s performance of its continuing public trust duty of supervision and its mandatory procedures in current and future proceedings, attack no permit and seek no vacatur and the TAC expressly disclaims any challenge to the representative-project approvals.” (Opposition at 7:21-24.) The portions of the TAP cited by Petitioner in support of this statement make clear that the *only* past decision that gives rise to one or more claims asserted through the TAC is the Bonny’s Use Permit discussed above. (See TAP at ¶¶ 35-36, 134-136, 164, and 311.) As discussed above, these claims are time barred.

Through the TAP, Petitioner asserts “Petitioner seeks relief directed exclusively toward future compliance with applicable law. The controversy presented is prospective and concerns Respondents’ current and continuing administration of land-use proceedings, groundwater review, public trust obligations, hearing procedures, appeal procedures, and maintenance of administrative records.” (*Id.* at ¶ 136.)

By the foregoing, Petitioner appears to suggest that, by the TAP, it seeks an order directing the County to abide by the law in future decision making. The TAP does not, however, specifically articulate what type of order Petitioner seeks; Petitioner fails to explain the form that “relief directed exclusively toward future compliance with applicable law” would take. Moreover, the Court is aware of no authority by which the Court may make such an order.

With regard to Petitioner’s Second Cause of Action for Traditional Mandamus, “[a] [traditional] writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person.” (Code Civ. Proc., § 1085.) “Mandate will lie where the respondent has a clear, *present* and usually ministerial duty and the petitioner has a clear, *present* and beneficial right to performance of that duty.” (*Gilbert v. Cal.* (1990) 218 Cal.App.3d 234, 241. Italics added.)

It appears, to the Court, that any such relief would be inappropriate as, “the basis for the action must be a clear present duty to perform the act sought to be compelled; the writ will not be granted merely in anticipation that the party will refuse to perform the duty when the time comes.” (*Brandt v. Bd. of Supervisors* (1978) 84 Cal.App.3d 598, 600-601.)

As to Petitioner’s Third Cause of Action for Violation of the Public Trust Doctrine, the state’s duty is “to take the public trust into account *in the planning and allocation* of water resources, and to protect public trust uses whenever feasible.” (*National Audubon Society v. Super. Ct.* (1983) 33 Cal.3d 419, 446. Italics added.) “[G]overnment has a duty to consider the public trust interest *when making decisions impacting water* that is imbued with the public trust.” (*ELF, supra*, 26 Cal.App.5th at 865. Italics added.) While a petitioner may, properly, challenge a specific failure by an agency to comply with its administrative obligations, “pattern and practice” challenges based on the Public Trust Doctrine are “particularly ill-suited to traditional mandamus.” (*Monterey Coastkeeper v. California Regional Water Quality Control Bd., etc.* (2022) 76 Cal.App.5th 1, 22 (*Monterey Coastkeeper*).) “Simply ordering the [agency] to apply

the public trust doctrine would be an empty judgment, while actually determining whether the [agency] is properly applying the doctrine would necessarily require the trial court to consider the many decisions within the [agency's] mandate, decisions that will typically require the exercise of administrative discretion and will often require technical expertise.” (*Ibid.*) “This inherently discretionary doctrine generally does not allow for intervention by the courts other than in the context of judicial review of administrative decisions. “Intervention by the courts [through a separate lawsuit under the public trust doctrine], other than by exercising oversight over the administrative process and ensuring that proper standards are applied, not only would threaten duplication of effort and inconsistency of results, but would require courts to perform an ongoing regulatory role as technology evolves and conditions change.” [Citation.]” (*Citizens for East Shore Parks v. State Lands Com.* (2011) 202 Cal.App.4th 549, 577–578.)

The Fourth Cause of Action for Violation of California Constitution Article I, Section 7 is a mixed cause of action. The allegations of paragraphs 328-332 clearly relate specifically to the administrative procedures leading to the approval of the Bonny’s Use Permit. The claim based on these allegations is time barred for the reasons discussed above.

Thereafter, Petitioner alleges that “Respondents apply procedural requirements inconsistently among similarly situated applicants and appellants . . . selectively enforce mandatory procedures . . . [and] . . . have adopted customs and practices resulting in unequal treatment and arbitrary administration of governmental processes. (See TAP at ¶¶ 333-335.)

Petitioner fails, however, to explain how these allegations constitute a violation of *Petitioner’s* right to due process.

“[A]n overarching, quasi-legislative policy set by an administrative agency . . . is subject to review in an action for declaratory relief.” (*Californians for Native Salmon Etc. Ass’n v. Dep’t of Forestry* (1990) 221 Cal.App.3d 1419, 1429 [271 Cal.Rptr. 270].)

As noted in the concurrent rulings on Respondents’ and Bonny’s respective Motions to Strike, however, Petitioner did not assert a claim for Declaratory Relief in any prior version of the operative petition, was not granted leave to add such claim to the TAP, and has not moved for such leave. (See California Rules of Court, rule 3.1324 [requirements for a motion for leave to amend a pleading before trial].)

Even after multiple reviews of the TAP, the Court is simply unable to meaningfully connect Petitioner’s arguments regarding the nature of the surviving “prospective” claims – cited and quoted above – with allegations that state a cause of action for traditional mandamus, violation of the public trust doctrine, or violation of Petitioner’s due process rights. Put another way, the Court is unable, from a review of the TAP, to find allegations that adequately state any “prospective” public trust and/or mandamus claim. (See Code Civ. Proc., § 425.10, subd. (a)(1) [providing that a complaint must contain ‘facts constituting the cause of action’]; see also Code Civ. Proc., § 430.10, subd. (e) [“The party against whom a complaint . . . has been filed may object, by demurrer . . . , to the pleading on . . . grounds . . . [t]he pleading does not state facts sufficient to constitute a cause of action”].)

For the foregoing reasons, the demurrers are, each, SUSTAINED.

3. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*) Here, the burden is on Plaintiff to show in what manner it can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Ibid.*; *Medina v. Safe Guard Products* (2008) 164 Cal.App.4th 105, 112 n.8; see also *Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

As County Defendants and Bonny's note, Petitioner has now had four attempts at stating a good claim in this action. While Petitioner requests leave to amend through its Opposition briefs, it makes no effort to suggest in what manner it can amend to state a good claim. Based on the nature of the allegations in the TAP, the arguments advanced through the Opposition, and the history of the pleading in this action, it is entirely unclear, to the Court, how Petitioner could amend the TAP to state any valid claim.

Based on the foregoing, the demurrers are, each, SUSTAINED WITHOUT LEAVE TO AMEND.

.....
In the Matter of Sara Perez

26CV001110

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....
In The Matter of Ricardo Efren Ponce Rico

26CV001306

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on June 23, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A to provide any publisher time to file the POP.

****at 9:30 a.m.****

Balcal Construction, Inc. et al v. Reynolds Law, LLP et al

24CV001476

[1] DEFENDANTS REYNOLDS LAW LLP AND ALFONSO LUIS POIRE'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendants Reynolds Law LLP and Alfonso Luis Poiré (collectively, "Defendants") move, pursuant to Code of Civil Procedure section 437c,⁵ for an order granting summary judgment in favor of Defendants and against Plaintiffs Balcal Construction Inc., Cruz Calderon, and Maximino Ballines (collectively, "Plaintiffs"). Defendants so move "on the grounds on the grounds that each of Plaintiffs' causes of action against Defendants in this action fail as Plaintiffs cannot establish the required elements of duty and breach because Plaintiffs claims are premised upon conduct by Defendants that met the professional standard of care, and Plaintiffs' causes of action fail because Plaintiffs also cannot establish the required elements of causation or damages because they cannot prove that Plaintiffs would have obtained a better result in the underlying action." (Notice of Motion, 2:8-13.)

B. LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit." (§ 437c, subd. (a)(1).) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "'Material facts' are facts that relate to the cause of action...that is the subject of the motion and that could make a difference in the disposition of the motion." (Rules of Court, rule 3.1350(a)(2).)

The moving party also bears an initial burden of production. A moving defendant may satisfy this burden by making a prima-facie showing of either: a) the nonexistence of any triable issue of material fact relating to one or more elements of the plaintiff's claims; or b) every element of an affirmative defense. "Summary judgment in favor of the defendant will be upheld when the evidentiary submissions conclusively negate a necessary element of the plaintiff's cause of action or show that under no hypothesis is there a material issue of fact requiring the

⁵ All subsequent statutory references are to the Code of Civil Procedure, unless otherwise specified.

process of a trial.” (*Biscotti v. Yuba City Unified School Dist.* (2007) 158 Cal.App.4th 554, 557-58.) “The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) *negating, as a matter of law*, an essential element of plaintiff’s claim.” (Weil & Brown, *et al.*, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2021) § 10:241, p. 10-105; see also *Guz v. Bechtel* (2000) 24 Cal.4th 317, 334.) However, a defendant may also obtain summary judgment by affirmatively showing that plaintiff does not possess and cannot reasonably obtain evidence sufficient to establish an essential element – by, for example, admissions obtained through discovery that plaintiff is aware of no such evidence. (See *Aguilar, supra*, 25 Cal.4th at 855.)

If the party carries this burden, there is a shift and the opposing party is then subjected to a burden of production to make a prima-facie showing. (*Id.*, at 850.) “In ruling on the motion, the trial court views the evidence and inferences therefrom in the light most favorable to the opposing party.” (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 588.)

C. DISCUSSION

The pleadings serve as the “outer measure of materiality” and “determine the scope of relevant issues on a summary judgment motion.” (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Cal. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

The Complaint asserts two causes of action against Defendants. The First Cause of Action is for Legal Malpractice, and the Second Cause of Action is for Breach of Fiduciary Duty. Both causes of action are based on Defendants’ failure to exercise due care as Plaintiffs’ retained counsel in litigation filed against them by Louis Giraudo and Suzanne Giraudo on September 22, 2022 (“Underlying Action”). (See 8/26/24 Compl., ¶¶ 4, 10-11, 14-16.) Thus, both causes of action require Plaintiff to establish legal malpractice. (See *Kracht v. Perrin, Gartland & Doyle* (1990) 219 Cal.App.3d 1019, 1022 [“Where the injury is suffered by reason of an attorney’s professional negligence, the gravamen of the claim is legal malpractice, regardless of whether it is pled in tort or contract.”].)

To establish legal malpractice, a plaintiff must prove: “(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence.” (*Coscia v. McKenna & Cuneo* (2001) 25 Cal.4th 1194, 1199.)

Defendants argue that Plaintiffs cannot establish the element of breach because it is undisputed that Defendants met the professional standard of care.⁶ In support of their contention that there is no triable issue of material fact regarding breach, Defendants submit the following purportedly undisputed material facts: (1) “During the course of the Underlying Action, Mr. Poiré filed an Answer on behalf of BalCal Construction and worked with Plaintiffs to try and

⁶ While Defendants’ Notice of Motion contends that Plaintiffs cannot establish duty, their Memorandum appears to concede the existence of a duty to use such skill, prudence, and diligence as lawyers of ordinary skill and capacity commonly possess and exercise in performing the tasks they undertake. (See Mem., 4:3-20.)

negotiate a settlement and/or obtain facts to support a cross-complaint by the Plaintiffs against the Giraudos,” and (2) “On July 18, 2023, several months prior to trial of the Underlying Action and before Mr. Poiré had received sufficient information and evidence from Plaintiffs to finalize a cross-complaint or complete settlement discussions, the Giraudos unilaterally filed a voluntary dismissal of the Underlying Action. Defendants received the notice of the voluntary dismissal on August 17, 2023.” (Separate Statement of Undisputed Material Facts (“UMF”) Nos. 4-5, citing evidence; see Mem., 5:2-8.)

Even assuming *arguendo* the cited evidence supports UMF Nos. 4-5, UMF Nos. 4-5 do not address all allegations of breach asserted in the Complaint.⁷ For example, the Complaint alleges Defendants breached their standard of care by failing to immediately conduct discovery, promptly retain experts, keep Plaintiffs fully informed of the case, respond to Plaintiffs’ requests for information, promptly initiate a cross-complaint against the Giraudos for monies owed, promptly account and refund monies that were paid to Defendants but never earned, and notify Plaintiff’s insurance carriers to protect Plaintiff’s financial interest. (See Compl., ¶¶ 11(a)-(i), 16.) As noted, the pleadings determine what issues are material in a summary judgment motion. Therefore, a moving party who does not address an issue in its summary judgment motion that was raised in the Complaint fails to meet its initial burden of showing Plaintiff’s action has no merit. (*Hedayati v. Interinsurance Exchange of Automobile Club* (2021) 67 Cal.App.5th 833, 846.)

Here, because Defendants have not addressed (and, therefore, have neither negated nor affirmatively shown that Plaintiffs do not possess and cannot reasonably obtain evidence sufficient to prove) all issues raised in the Complaint in support of Plaintiffs’ allegations of breach, Defendants have failed to meet their initial burden that there is no triable issue of material fact as to the element of breach.

Defendants next argue that Plaintiffs cannot establish causation or damages because there is no evidence that Plaintiffs would have obtained a better result in the Underlying Action and Plaintiffs did not lose any claims against the Giraudos as a result of Defendants’ representation. (Mem., 5:16-19.)

“In the legal malpractice context, the elements of causation and damage are particularly closely linked.” (*Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Sup. Ct.* (2006) 137 Cal.App.4th 579, 591 (*Hecht*).) “One who establishes malpractice on the part of his or her attorney *in prosecuting a lawsuit* must also prove that careful management of it would have resulted in a favorable judgment and collection thereof, as there is no damage in the absence of these latter elements.” (*DiPalma v. Seldman* (1994) 27 Cal.App.4th 1499, 1506-07.) The plaintiff has to show both that the loss of a valid claim was proximately caused by defendant attorney’s negligence, and that such a loss was measurable in damages. (*Hecht, supra*, 137 Cal.App.4th at 591.)

⁷ UMF No. 8 also appears to be included in support of Defendants’ argument as to breach. However, UMF No. 8 merely provides Defendants’ representation of what Plaintiffs’ Complaint alleges in terms of breach. A party moving for summary judgment cannot avoid issues raised in a Complaint by representing the allegations in a different manner as a purportedly undisputed material fact.

Plaintiffs do not dispute that they did not lose any claims against the Giraudos and that, after the Giraudos' voluntary dismissal in the Underlying Action, Plaintiffs filed suit against the Giraudos in case no. 23CV001364, which matter is currently set for trial on October 26, 2026. (Plaintiffs' Response to Defendant's Separate Statement ("PSS"), No. 7.)

Defendants' Separate Statement, however, includes no UMF regarding Plaintiffs' purported lack of evidence showing that Defendants' careful management of the Underlying Action would have resulted in a favorable judgment. (See generally UMFs.) Moreover, Defendants' Memorandum does not argue that Plaintiffs do not possess and cannot reasonably obtain sufficient evidence thereon. Rather, Defendants' argument seems to rest on the proposition that, because "the Giraudos had a statutory right to voluntarily dismiss their case," and because the Giraudos voluntarily dismissed "[o]n July 18, 2023, several months prior to trial of the Underlying Action and before [Defendants] had received sufficient information and evidence from [the Giraudos] to finalize a cross-complaint or complete settlement discussions," Plaintiffs could not have obtained a better result. (See Mem., 6:24-26; UMF No. 5.)

However, this argument disregards Plaintiffs' claims that Defendants did not work expeditiously to file a cross-claim against the Giraudos prior to the Giraudos' voluntary dismissal and, due to that, Plaintiffs suffered damages in the form of having to retain a new attorney and file new litigation, resulting in additional attorneys' fees and potential loss of key evidence and testimony. (See Compl., ¶¶ 11-12, 15-16.) Again, Defendants' Separate Statement includes no UMF to dispute that issue raised in the Complaint.

Thus, because Defendants have not addressed all issues raised in the Complaint in support of Plaintiffs' allegations of causation and damages, Defendants have failed to meet their initial burden that there is no triable issue of material fact as to those elements.

Based on the foregoing, the motion is DENIED.

[2] DEFENDANT JAMES R. FORBES' MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant James R. Forbes (“Defendant”) moves, pursuant to Code of Civil Procedure section 437c,⁸ for an order granting summary judgment in favor of Defendant and against Plaintiffs Balcal Construction Inc., Cruz Calderon, and Maximino Ballines (collectively, “Plaintiffs”). Defendant so moves “on the grounds that each of Plaintiffs’ causes of action against Defendant in this action fail as Plaintiffs cannot establish the required elements of duty and breach [because] Defendant never represented Plaintiffs in any capacity whatsoever.” (Notice of Motion, 2:8-10.)

B. LEGAL STANDARD

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit.” (§ 437c, subd. (a)(1).) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “‘Material facts’ are facts that relate to the cause of action...that is the subject of the motion and that could make a difference in the disposition of the motion.” (Rules of Court, rule 3.1350(a)(2).)

The moving party also bears an initial burden of production. A moving defendant may satisfy this burden by making a prima-facie showing of either: a) the nonexistence of any triable issue of material fact relating to one or more elements of the plaintiff’s claims; or b) every element of an affirmative defense. “Summary judgment in favor of the defendant will be upheld when the evidentiary submissions conclusively negate a necessary element of the plaintiff’s cause of action or show that under no hypothesis is there a material issue of fact requiring the process of a trial.” (*Biscotti v. Yuba City Unified School Dist.* (2007) 158 Cal.App.4th 554, 557-58.) “The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) *negating, as a matter of law*, an essential element of plaintiff’s claim.” (Weil & Brown, *et al.*, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2021) § 10:241, p. 10-105; see also *Guz v. Bechtel* (2000) 24 Cal.4th 317, 334.) However, a defendant may also obtain summary judgment by affirmatively showing that plaintiff does not possess and cannot reasonably obtain evidence sufficient to establish an essential element – by, for example, admissions obtained through discovery that plaintiff is aware of no such evidence. (See *Aguilar, supra*, 25 Cal.4th at 855.)

If the party carries this burden, there is a shift and the opposing party is then subjected to a burden of production to make a prima-facie showing. (*Id.*, at 850.) “In ruling on the motion, the trial court views the evidence and inferences therefrom in the light most favorable to the opposing party.” (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 588.)

C. DISCUSSION

The Complaint asserts two causes of action against Defendant. The First Cause of Action is for Legal Malpractice, and the Second Cause of Action is for Breach of Fiduciary Duty. Both causes of action are based on Defendant’s failure to exercise due care as Plaintiffs’ retained counsel in litigation filed against them by Louis Giraudo and Suzanne Giraudo on September 22, 2022 (“Underlying Action”). (See 8/26/24 Compl., ¶¶ 4, 10-11, 14-16.) Thus, both causes of

⁸ All subsequent statutory references are to the Code of Civil Procedure, unless otherwise specified.

action require Plaintiff to establish legal malpractice. (See *Kracht v. Perrin, Gartland & Doyle* (1990) 219 Cal.App.3d 1019, 1022 [“Where the injury is suffered by reason of an attorney’s professional negligence, the gravamen of the claim is legal malpractice, regardless of whether it is pled in tort or contract.”].)

To establish legal malpractice, a plaintiff must prove: “(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence.” (*Coscia v. McKenna & Cuneo* (2001) 25 Cal.4th 1194, 1199.)

Defendant argues that Plaintiffs cannot establish the element of duty⁹ because it is undisputed that Defendant never established an attorney-client relationship with Plaintiffs, and never did any work on the matter at issue in this lawsuit. (Mem., 4:9-11.) In support, Defendant submits the following purportedly undisputed material facts: (1) Defendant never met anyone associated with Plaintiffs before the first deposition in this case, (2) Defendant never did any work on the underlying legal matter at issue in this case, (3) Defendant never billed Plaintiffs so much as a penny for work, and (4) Defendant never discussed the Underlying Action with Plaintiffs, with co-defendant Mr. Poire, or anyone, while it was a pending matter within Reynolds Law. (Separate Statement of Undisputed Material Facts (“UMF”) Nos. 1-4, citing evidence.)

Even assuming *arguendo* it can be said Defendant met his burden, Plaintiffs have met their burden to make a prima-facie showing that there is a triable issue of material fact as to the existence of Defendant’s duty.

Specifically, Plaintiffs show that they retained the law firm of Reynolds Law, LLP in connection with, at least, the Underlying Action and that the retention letter from Reynolds Law, LLP sent to Plaintiffs confirmed that the Underlying Action was being handled by attorneys Alfonso Poire and James R. Forbes. (Plaintiffs’ Response to Defendant’s Separate Statement (“PSS”), No. 1, citing Declaration of Cruz Calderon ¶¶ 7-9, Exh. 2¹⁰; see also Plaintiffs’ Separate Statement of Additional Material Facts (“AMF”), No. 4.) Defendant does not dispute the foregoing. (Defendant’s Response to AMF, No. 4.) Instead, Defendant argues that an attorney-client relationship cannot be created by one party’s unilateral declaration. (*Ibid.*; see also Reply, 2:9-11, citing *Koo v. Rubio’s Restaurants, Inc.* (2003) 109 Cal.App.4th 719, 729.)

Koo stands for the proposition that individuals cannot unilaterally create an attorney-client relationship without the agreement of the attorney. Here, it is undisputed that there was an agreement between Mr. Poire on behalf of Reynolds Law LLP and Plaintiffs. (See Calderon Decl., Exh. 2.) The pertinent question, therefore, is whether the agreement by Mr. Poire on

⁹ The Court notes that the Motion is noticed on the ground that Plaintiffs also cannot establish breach. However, Defendant’s Memorandum and Reply only address the element of duty. (See Mem., 4:9-11 [“Only the first element, a duty owed by Forbes to Balcal, is an issue here”]; Reply, 2:5-6 [“Plaintiffs [] cannot establish the duty element of the cause of action”].) Thus, the Court’s analysis is limited to the element of duty.

¹⁰ Although the Cruz Calderon Declaration identifies the retention letter as Exhibit 2, the retention letter for the Underlying Action is attached as Exhibit 1 to Plaintiff’s Exhibit Log.

behalf of Reynolds Law LLP creates an attorney-client relationship between Plaintiffs and other attorneys with Reynolds Law LLP, specifically Defendant.

California courts have consistently answered that question in the affirmative. “Unless there is an agreement to the contrary, the retention of an attorney in a law firm constitutes the retention of the entire firm. (*Streit v. Covington & Crowe* (2000) 82 Cal.App.4th 441, 445, 98 Cal.Rptr.2d 193 [‘by retaining a single attorney, a client establishes an attorney-client relationship with any attorney who is a partner of or is employed by the retained attorney’]; see Rest.3d Law Governing Lawyers, § 14, com. h, p. 132 [‘Many lawyers practice as partners, members, or associates of law firms [citation]. When a client retains a lawyer with such an affiliation, the lawyer’s firm assumes the authority and responsibility of representing that client, unless the circumstances indicate otherwise’]; 1 *Mallen & Smith, Legal Malpractice, supra*, Vicarious Liability, § 5.3 at p. 546 [‘Unless there is a specific agreement to the contrary, the retention of one partner of a law firm is a retention of the entire firm, so that any attorney in the firm may perform services’]; 1 *Vapnek et al., Cal. Practice Guide: Professional Responsibility* (The Rutter Group 2006) ¶¶ 3:19, pp. 3–5 to 3–6 [‘Where a client retains a law firm ... the client’s relationship extends to all members of the firm or organization’]; see also *Blackmon v. Hale, supra*, 1 Cal.3d at p. 558, 83 Cal.Rptr. 194, 463 P.2d 418 [‘Although the [law] firm’s records indicate that [the partners] regarded plaintiff as a client of [one partner] only, there is no evidence whatever that [the partners] ever informed plaintiff that [the partner] was not representing plaintiff as a member of the firm’].)” (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 392.)

Based on the foregoing, the motion is DENIED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**In the Matter of Irrevocable Special Needs Trust
For Jamie J. Cooper, Dated June 30, 2009**

21PR000283

SPECIAL NEEDS TRUST – AMENDED PETITION FOR APPROVAL OF SECOND ACCOUNT, APPROVAL OF ATTORNEY’S FEES, APPROVAL OF TRUSTEES’ FEES; AND FOR SETTLEMENT THEREOF [Filed 4/9/26]

TENTATIVE RULING: The petition is GRANTED. The matter is set for a Third Accounting on August 22, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Clerk is directed to send notice to the parties.

GUARDIANSHIP CALENDAR – Commissioner Douglas Skelton, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Guardianship of Arianna Mae Perez et al

26PR000117

PETITION FOR APPOINTMENT OF GUARDIAN OF MINOR

APPEARANCE REQUIRED. Petitioner did not provide sufficient notice of the hearing or service of the Petition on the Minors' Mother or Maternal Grandfather. The evidence of service in the Court file demonstrates service on James Giller on August 8, 2026, which is 13 days' notice. (See 8/13/26 POS.) However, 15 days' notice is required. (See Prob. Code, § 1511.) The evidence of service in the Court file demonstrates service on Mother via text message. (See 6/5/26 POS.) However, personal service on the Minors' parents is required. (*Ibid.*) "The court lacks jurisdiction to rule on a [petition] that has not been properly noticed for hearing on the date in question." (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

That said, the court investigator report reflects that both Mother and Maternal Grandfather were interviewed regarding the underlying Petition and that Maternal Grandfather reported he does not support the Petition. Moreover, the Court notes that Mother appeared at the June 10, 2026 Hearing for Temporary Guardianship, at which this August 21, 2026 Hearing on Permanent Guardianship was confirmed. Thus, the Court believes there is a likelihood that Mother and Maternal Grandfather will appear at the hearing as noticed, prepared to proceed on the Petition hearing.

Thus, in the interests of judicial efficiency, Petitioner's appearance is required. If Mother and Maternal Grandfather do not appear at the hearing, however, the Court will continue the present Petition to allow Petitioner to provide sufficient notice to Mother and Maternal Grandfather.

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Guardianship of Joseph Matthew Reggiardo, Jr.

26PR000140

PETITION FOR APPOINTMENT OF GUARDIAN OF MINOR'S ESTATE

APPEARANCE REQUIRED